



File No.: EXP202302938

Sanctioning Procedure PS/00545/2023

RESOLUTION

OF SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on May 15, 2023. The complaint is directed against the TOWN HALL OF FUENTEPELAYO with NIF P4010000J (hereinafter, the Town Hall). The reasons on which the complaint is based are as follows: The claimant works (...) at the San Miguel nursing home, owned by the Town Hall of Fuentepelayo (Segovia), and states the following:

- That between 07/01/2021 and 12/15/2022, the management of the nursing home unilaterally decided to install a time clock as a means of recording the working hours of employees, making it mandatory to register entry and exit by fingerprint, without prior communication or information to the employees or their representatives, and without an apparent impact assessment.
- That as employees of the company arrived, their fingerprints were recorded, knowing that not all employees' fingerprints were taken.
- In parallel to this time clock system, the claimant states that employees filled out a "time control sheet," which was only used to verify holidays or night shifts.
- The claimant requested information regarding the data protection of the fingerprints recorded and a summary of the records made from 01/01/2022 to the management of the Residence, to the Head of HR, and to the Mayor. He states that his request for information was denied on the first occasion, arguing that it was an internal control document. Upon insisting, the time clock was removed on 12/15/22, without prior communication of the reason to the employees or to him. Subsequently, he requested the information again, and the management denied his request, arguing that the fingerprint records were only used to verify the signature sheets and that they had been destroyed, with no obligation to retain them because the official control system was the time control sheets and not the fingerprint (12/22/2022).

Along with the complaint, he provides:

- A photograph of the fingerprint time clock taken prior to its removal on 12/15/2022, and photographs of 3 informational posters signed by

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the Director of the Residence: (i) dated 28/05/2021, 2 posters, one indicating "Time clock: prohibited to unplug under any circumstances"; and the other with the "Rules for clocking in" by fingerprint, which clearly states: "Upon entering work: all workers will clock in while in uniform. Upon leaving: all workers will clock out while in uniform (...); (ii) and another dated 30/06/2021 which literally stated: "Starting in July, clocking in must be done via fingerprint and signature sheets will continue to be used. These sheets will serve each worker to justify and verify the hours worked monthly when the data is communicated to the City Council (night shifts, holidays, Saturdays, and Sundays). In case of conflict, the information contained in the clocking records will prevail over that noted on the signature sheet."

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It also includes a copy of the emails exchanged with the Residence at the email address residencia@fuentepelayo.es to request a copy of their clocking records, the last two with a copy to the mayor's office: (i) the request sent on 12/12/2022 and the response on the same day indicating that clocking records should be requested in writing from the City Council as it is an internal management tool; (ii) the reiteration of the request to the same email made on 21/12/22, which was answered the

same day indicating that the clock had been removed, (iii) and the last one on the same day in which the claimant insists on requesting this data and is informed that the clocking records were used to verify the signature sheet, and that they were subsequently destroyed because there is no obligation to keep them.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), on 6/3/23, this complaint was forwarded to the claimed City Council, as this nursing home is municipally owned, so that they could respond to the request for certain information necessary to comply with the regulations on the processing of biometric data, in order to inform this Agency within one month about the requested information.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on 10/03/2023, as stated in the acknowledgment of receipt in the file.

THIRD: On 31/03/2023, a response letter from the City Council of Fuentepelayo was received by this Agency, indicating, in summary, the following:

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The City Council is identified as the responsible party for the processing of personal data of the San Miguel residence, stating that it has initiated the processing of biometric data of its workers (fingerprints) with the following purpose: “as an alternative measure for controlling attendance and recording the times of entry and exit of workers, with the aim of correcting tardiness that could disrupt the proper functioning of the service.”

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It is noted that: “as a means of verifying compliance with the regulations regarding the recording of working hours, this alternative system is placed in testing, with no fingerprints stored, nor is there a record of...”

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schedules, nor biometric data templates, as the system was removed after observing various errors in its operation.”

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As a basis for legality, it is alleged that what is provided in Article 6.1.b) of the GDPR (as it is necessary for the execution of the contract) and Article 6.1.e) of the GDPR (in the public interest) applies.

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As an exception to the general prohibition on the processing of biometric personal data, it is claimed that the cause of Article 9.2.b) applies, maintaining that the processing is necessary for the fulfillment of obligations and the exercise of specific rights of the data controller.

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Regarding the requirement for adopted guarantees, none are provided, only maintaining that it has adhered to a Data Protection Assistance Plan, insisting that fingerprints are not stored, so there is no possibility of data reuse, nor their deletion or destruction. However, it is also stated that the data could not be decrypted or used due to the technical problems observed.

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Concerning the prior information to be provided to workers about the processing of their biometric data, it is stated that “The recipients of the system were the staff of the Elderly Residence. The system in testing was implemented in the premises through announcements and informative signage, with the Director of the Residence being responsible for individually informing the workers about the processing of the data that could be obtained.”

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It is acknowledged that “An Impact Assessment could not be carried out due to the technical failures

that hindered the installation of this possible mechanism, and, on the other hand, because it did not intend to replace the manual record-keeping that is currently in force and does not store any type of fingerprint.”

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It is stated that the system was withdrawn due to technical problems, maintaining that: “This Local Entity understands that there has been a misunderstanding regarding the operation and registration of the installed clocking machine, as it did not fulfill a function of storing fingerprints or any other biometric data that could require special protection, due to its incorrect installation and therefore operation.”

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Finally, regarding the measures adopted to guarantee the rights of the data subjects, they inform of those that would be adopted in the future in case the system is implemented again, but not of those already adopted.

FOURTH: On April 21, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was declared inadmissible, mainly considering that the claimed City Council had proceeded to withdraw the system, thus addressing the complaint filed.

FIFTH: On May 15, 2023, a motion for reconsideration was filed by the complainant against the aforementioned inadmissibility resolution, and after being requested to rectify due to lack of signature, the appeal was received in legal form at this Agency on November 2, 2023, and the claimed City Council was given a hearing on November 3, without it responding.

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SIXTH: On November 30, 2023, a Resolution was issued by the General Director of this Agency estimating the appeal for reconsideration filed, which is notified to the claimant, in view of the fact that the documentation provided in the appeal and the review of the records in the file reveal sufficient indications that the fingerprint system installed by the City Council did not comply with the applicable data protection regulations concerning special category data, the processing of which is of high risk, such as biometric data. As a consequence, it is agreed to admit the claim filed on May 15, 2023, for processing, notifying the claimant.

SEVENTH: On April 18, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 9 of the GDPR, Article 35 of the GDPR, and Article 13 of the GDPR, classified under Article 83.4.a) of the GDPR, Article 83.5.a) of the GDPR, and Article 83.5.b) of the GDPR.

EIGHTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations were received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in the present procedure,

PROVEN FACTS

FIRST: The City Council of Fuentepelayo acknowledges in its letter dated March 31, 2023, that between July 1, 2021, and December 15, 2022, it implemented, for the purpose of recording the

working hours of the staff at the San Miguel nursing home, which is owned by the City Council, a mandatory clocking system through fingerprint recognition, with the following purpose: "as an alternative measure for controlling attendance and recording the entry and exit times of workers, in order to correct tardiness that could disrupt the proper functioning of the service." It acknowledges and states that the fingerprints of the employees were collected and stored, and that the fingerprint clocking system was used by the employees as a mandatory clocking system.

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working hours, as stated in the informational posters that were placed by the management of the residence, provided by the claimant, who is an employee of the residence. Lastly, it is stated that the system was removed on December 15, 2022, "after noticing various errors in its operation," although it does not specify what technical failures are involved nor does it present evidence of the same.

SECOND: The City Council acknowledges that it has not conducted a prior or subsequent Data Protection Impact Assessment (EIPD) before or after the initiation of the processing of biometric data (fingerprints) of the employees of the residence.

THIRD: The City Council has not demonstrated that any of the exceptions provided for in Article 9.2 of the GDPR apply, which would allow lifting the general prohibition on the processing of biometric data for the purpose of recording and controlling the working hours of the staff of the residence.

FOURTH: Regarding the prior information to be provided to workers about the processing of their biometric data referred to in Article 13 of the GDPR, the City Council states that "The recipients of the system were the staff of the Elderly Residence. The system in testing was implemented in the premises through announcements and informational signage, with the Director of the Residence being responsible for individually informing the workers about the processing of the data that could be obtained."

No evidence has been provided to prove that the Director provided this information individually to the workers; the only evidence submitted in this regard consists of photographs of the 3 informational posters provided by the claimant, as acknowledged by the responding party in the reply to the complaint, which are dated May 25 and June 31, 2021, that is, a few days before the installation of the biometric control system, with the following content:

(i)

Poster dated 28/05/2021, indicating "Clocking machine: prohibited to unplug under any circumstances."

(ii)

Poster dated 28/05/2021 with the "Rules for clocking in" by fingerprint, which clearly states: "Upon entering work: all workers will clock in while in uniform. Upon leaving: all workers will clock out while in uniform (...)"

(iii)

The most relevant, dated 30/06/2021, which literally stated: "Starting in July, clocking in will have to be done by fingerprint, and signature sheets will continue to be used. These sheets will serve each worker to justify and verify the hours worked monthly when the data is communicated to the City Council (night shifts, holidays, Saturdays, and Sundays). In case of conflict, the information contained in the clocking records will prevail over that noted on the signature sheet."

FIFTH: According to the emails provided by the claimant, it is evidenced that he requested information regarding the data protection of the clockings made by fingerprint and a summary of the clockings made from

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01/01/2022 to the management of the Residence, to the Head of HR, and to the Mayor. Specifically, a copy of the emails exchanged with the Residence at the email address residencia@fuentepelayo.es is

attached to request a copy of their time records, the last two with a copy to the mayor's office: (i) the request sent on 12/12/2022 and the response on the same day indicating that the time records should be requested in writing from the Town Hall as it is an internal management tool; (ii) the reiteration of the request to the same email made on 21/12/22, which was answered the same day indicating that the clock had been removed; (iii) and the last one on the same day in which the claimant insists on requesting this data and is informed that the time records were used to verify the signature sheet and that they were subsequently destroyed because there is no obligation to keep them.

LEGAL GROUNDS

I

Competence and procedure

In accordance with the powers granted by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Biometric data as special category personal data

2.1. Definition and characteristics of biometric data.

Biometric data processing systems are based on collecting and processing personal data related to the physical, physiological, or behavioral characteristics of individuals, which may include their neural characteristics, through devices or sensors, creating biometric templates (also referred to as signatures or patterns) that enable the identification, tracking, or profiling of such individuals.

The GDPR defines biometric data in Article 4.14 as "personal data obtained through a specific technical processing, relating to the physical, physiological, or behavioral characteristics of a natural person which allow or confirm the unique identification of that person, such as facial images or fingerprint data."

Any biometric system for recording working hours must first register the identity of the user in the system through the capture of...

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a series of biometric parameters (in this case, the fingerprints of the workers at the residence). The aim is to process these parameters to identify the person each time they enter and exit through the access point.

The decision to implement a new method of monitoring the working hours of employees that involves the processing of biometric data, such as those based on fingerprint detection, as is the case here (or facial recognition in other instances), is not a trivial decision. This type of processing relies on technology that can be truly intrusive and requires a calm ethical and legal debate before deciding on its implementation—even if it is still in the testing phase—since collecting the fingerprints of staff can have very adverse effects on the fundamental values and human integrity of these employees that do not occur with other attendance control methods. Consider just some of its special characteristics and think about the significant impact they have when these biometric data are compromised, compared to other methods (signature and completion of sheets, or clocking in with magnetic cards):

- Each individual has unique fingerprints that exhibit specific characteristics that can be measured to determine whether a fingerprint matches a registered sample. Therefore, they are unique, permanent, or definitive over time, and a person cannot free themselves from them; they can never be changed, not even with age, so the damage caused in the event of compromise, loss, or intrusion into the system is irreparable in this case. Unlike a password, in the event of loss, our fingerprint or facial data

cannot be changed.

- Furthermore, because biometric data are unique to a person and perpetual, the user can use the same data across different systems, which poses an additional risk.
- While traditional authentication methods such as passwords require a 100% character-by-character match to allow the user to access, for example, an account or application (deterministic methods), biometric methods are referred to as “probabilistic,” because they are based on the probability that the user attempting to access a particular device or application is the same person as the registered user. We can measure the performance of a biometric system based on three main characteristics. These are: false rejection rate (FRR), false acceptance rate (FAR), and equal error rate (ERR). The false rejection rate represents the probability of detection errors by a biometric system, meaning that it cannot recognize a user whose biometric characteristics are already in the database. In the event of a rejection, the person must verify their identity again. From a security and protection perspective, this rate does not necessarily mean that it is a negative outcome. Each biometric method, whether facial recognition, fingerprint reading, palm print, iris, etc., has different values for different rates based on which a system rejects or accepts inputs. Error rates, as stated by the City Council, were high in this case.

2.2. Biometric templates as special category personal data and high risk.

According to the definition provided by Article 4.14 of the GDPR, biometric data processed by these systems will become personal data as long as the purpose of the processing is the identification or authentication of a person,

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in the sense provided in Article 4.1 of the GDPR, which defines personal data as:

“1. Personal data: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.”

In this case, there is no doubt that biometric data of a personal nature is being processed, since the purpose of the implemented system is to determine the identity, directly or indirectly, of the employee of the residence who enters or exits the workplace and to verify the time and date of the beginning and end of their working day. Since the process assigns an identifier (the biometric template obtained by collecting the fingerprint samples of the data subjects) that allows for the individualization of a person and distinguishes them from others through “specific elements of their physical, physiological, genetic, mental identity.”

It should be noted that the approval of the GDPR has represented a paradigm shift in the field of personal data protection, aiming to further guarantee citizens control over their personal data by establishing high protection standards adapted to the digital environment in which we live. In accordance with the Principle of Proactive Responsibility, which inspires the new regulation, the new GDPR emphasizes that the data controller must seriously assess the risks of the processing they wish to establish concerning the rights and freedoms of the data subjects (always prior to initiating any processing, and continuously if they decide to do so), opting for a risk analysis approach from the design and by default, in order to identify them, determine the likelihood of materialization and their impact, and foresee measures and guarantees that eliminate or, at least, mitigate the detected risks, preventing their materialization. Likewise, certain obligations must be fulfilled, and specific principles established by the regulation must be respected.

Thus, whenever personal data of any kind is processed, the controller must comply with the principles and obligations set forth in the data protection regulation for all types of personal data.

However, when the personal data to be processed is biometric (fingerprints, facial recognition, etc.), it must also be considered that - unlike what occurred under the regime prior to the GDPR - this type of

data is considered special category personal data under Article 9, the processing of which is generally prohibited unless one of the exceptions provided for in Article 9.2 of the GDPR applies. This does not exempt the necessity for a lawful basis to always exist as provided in Article 6 of the same, among many other requirements and principles that must be complied with by anyone who decides to opt for this type of processing.

According to Article 9.1 of the GDPR, the processing of biometric data is prohibited when it is: "biometric data processed for the purpose of uniquely identifying a natural person." While Recital 51 of the GDPR includes both identification and authentication procedures: "since they are only included in the definition of biometric data when the fact of...

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Data treated with specific technical means that allow for the unequivocal identification or authentication of a natural person. Such personal data must not be processed unless their processing is permitted in specific situations contemplated in this Regulation.

In this regard, it is important to emphasize that the qualification as special category data necessarily implies the observance of special caution when determining whether it is possible to carry out processing of this nature. Among other things, and in addition to the existence of an exception that allows for the lifting of the prohibition in Article 9.1 of the GDPR, there must be a lawful basis under Article 6 of the GDPR, and the principles of the GDPR must be fulfilled. The entity intending to implement biometric data systems, in this case, the City Council, should have previously analyzed the concurrence of the necessary criteria of necessity, suitability, and proportionality of the processing. That is, anyone intending to establish processing of personal data of this nature must, first and foremost, ensure that they surpass what has been termed in jurisprudence as "the triple test of proportionality," particularly considering whether the processing of biometric data is suitable, proportional, and above all, necessary. If there are other non-biometric systems that allow achieving the same purpose of identifying-verifying the identity of individuals effectively, it will not be necessary to initiate biometric processing, and therefore, the implementation of this system will be considered contrary to the GDPR. This assessment must be the starting point of their analysis, as only if these methods surpass the aforementioned triple test will compliance with other requirements or guarantees be required.

An assessment that the City Council did not carry out before initiating the processing on July 1, 2021 (which is when it should have been done), nor during or at the end of the processing, as it claims to have finally withdrawn the system on December 15, 2022, for technical reasons, without considering whether what actually occurs is that there are other alternative methods that allow for the unequivocal verification of the identity of workers entering and leaving the workplace for the purpose of monitoring working hours, which are not as intrusive as fingerprint detection and are equally suitable for fulfilling the legal function of monitoring working hours.

Moreover, in addition to being special category data, the processing of biometric data is considered high risk according to the provisions of paragraph 4 of Article 35, which states that "...The supervisory authority shall establish and publish a list of the types of processing operations that require a data protection impact assessment in accordance with paragraph 1...", given that it is included among the processing types listed that require a data protection impact assessment, as published by the AEPD in development of the provision contemplated in the fourth paragraph of the aforementioned Article 35. There is no doubt about the high-risk nature of this data, considering that biometric data meets the criteria corresponding to numbers 4, 5, and 10 of that document (those involving the use of special categories of data; the use of biometric data; and those involving the use of new technologies or an innovative use of established technologies). Therefore, the processing of biometric data can never be initiated without having developed and surpassed a valid DPIA prior to the processing.

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When a processing activity is of "high risk," as is the case with biometric timekeeping methods, it is

mandatory to always conduct a Data Protection Impact Assessment (DPIA), in accordance with the provisions of Article 35.1 of the GDPR. This DPIA must be carried out prior to the commencement of the processing and must also be conducted continuously. It will not be sufficient to merely perform it; it must be considered valid, as it meets the requirements set forth in the aforementioned article, particularly that it contains at least the information specified in Article 35.7 of the GDPR.

It is established that the City Council did not conduct a DPIA in this case. Had this DPIA been carried out properly and before initiating the processing—as is legally required due to its high-risk nature—the City Council would have been able to assess and determine whether this processing met the legal requirements before starting it, thereby avoiding the administrative infringements for which responsibility is being determined in this procedure.

2.3. The City Council of Fuentepelayo as the data controller for the processing of biometric data of the staff at the Residence.

Article 4.2 of the GDPR defines "processing of personal data" as:

"any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction;"

Biometric characteristics are subjected to a technical processing through which a person is recognized via a chronological process contained in all biometric data processing: capturing or recording data followed by its storage or processing, and the phase of comparison or matching, data retention, as well as subsequent erasure, restriction, etc.

If the processing consists of the daily recording of working hours, it requires a varied set of operations that necessitate the processing of biometric personal data, which may include: the identification of the employee, the collection or capture of their fingerprint (whether raw or through a vector), its registration, storage, the identification-authentication of this in the timekeeping process, the recording of time and other possible data, its processing to determine excess or missing hours, its retention, erasure, restriction, etc.

Although the City Council insists that the biometric system has been removed, it is evident that there has been prior processing of biometric data that did not comply with the legally established requirements. Some of these processing operations must have necessarily taken place during the period when the fingerprint system was implemented, regardless of whether technical problems occurred, or whether the data (neither fingerprints nor entry and exit records, etc.) were archived after its removal, or whether a biometric vector was obtained when collecting the fingerprint, since it is acknowledged and stated that the fingerprints were collected and the system was used as a mandatory timekeeping system, as indicated in the informational posters placed by the management of the residence.

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In this regard, even though the system has been withdrawn, and even if it were true that the stored data has been deleted (which is not evidenced), it is certain that between July 1, 2021, and December 15, 2022, the claimed City Council was responsible for the operations of processing biometric data that were carried out to implement the system (fingerprint registration, storage in the system, identity identification-authentication that appears when clocking in on the device, processing, utilization, etc.). The City Council itself declares its responsibility for the processing of personal data of the Residence in its document dated March 31, 2023, therefore it is undoubtedly the entity responsible for any potential sanctioning liability that may arise from the breach of obligations established in data protection matters for the purposes provided in Article 4.7 of the GDPR, which defines: "7) 'data controller' or 'controller': the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of the processing, the controller or the

specific criteria for its appointment may be established by the law of the Union or of the Member States.”

In short, when the claimed City Council implemented a new fingerprint detection system for the identification-verification of the identity of natural persons, it should have been aware that it would become responsible for determining the purposes and means of several operations of processing special category data and high risk, and that this requires compliance with certain prior requirements, whether for installation in a testing phase or not, since by registering fingerprints and recording working hours, biometric data is already being processed, regardless of whether the system is producing legal effects for compliance with working hours or not.

From the evidence available so far in the file, following the instruction carried out, it is deduced that the City Council implemented this system committing 3 administrative infringements as outlined in the Legal Grounds III to V of this Resolution.

III.

On the necessity of conducting a prior and adequate impact assessment for the processing.

As previously stated, before implementing a data processing project based on such intrusive technology, it is also necessary to audit its operation beforehand, not in isolation but within the framework of the specific processing in which it will be employed (in this case, daily recording of the working hours of City Council employees).

The data protection impact assessment (DPIA) then appears as the tool required by the GDPR to ensure compliance with this aspect of processing, as established in Article 35, paragraph 1 of the GDPR,

“When a type of processing is likely to result in a high risk to the rights and freedoms of natural persons, in particular if it uses new technologies, by its nature, scope, context, or purposes, the controller shall, prior to the processing, carry out an assessment of the impact of the processing operations on the protection of personal data...”

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As already indicated, the processing of biometric data has been classified as high risk by the AEPD, pursuant to the provisions of Article 35.4 of the GDPR, so we must start from the premise that the processing of biometric data implemented by the City Council must have been preceded by a valid impact assessment, which included at least the sections provided for in Article 35.7 of the GDPR. This implies that it is not enough to carry out a DPIA; it must be surpassed to comply with the GDPR.

This assessment will be carried out prior to the commencement of processing, but it must be understood as a continuous or periodic assessment, in the sense established by Article 35.11 of the GDPR, which states: “Where necessary, the controller shall review whether the processing is in accordance with the data protection impact assessment, at least when there is a change in the risk posed by the processing operations.”

A DPIA must meet the minimum requirements or content outlined in Article 35.7 of the GDPR, which states:

“The assessment shall include at least:

- a) a systematic description of the envisaged processing operations and the purposes of the processing, including, where applicable, the legitimate interest pursued by the controller;
- b) an assessment of the necessity and proportionality of the processing operations in relation to their purpose;
- c) an assessment of the risks to the rights and freedoms of data subjects referred to in paragraph 1; and
- d) the measures envisaged to address the risks, including safeguards, security measures, and mechanisms to ensure the protection of personal data, and to demonstrate compliance with this Regulation, taking into account the rights and legitimate interests of data subjects and other affected persons.”

In short, surpassing a DPIA requires that the controller of high-risk processing documents in writing that they exceed the assessment of suitability, necessity, and proportionality of the processing, and that they manage the specific risks of the processing from the design stage, with the practical application of measures aimed at them in such a way as to ensure an acceptable risk threshold throughout the entire lifecycle of the processing, as established in Article 35 of the GDPR.

Furthermore, it requires prior consultation with the supervisory authority in cases where the controller has not taken measures to mitigate the risk in accordance with Article 36 of the GDPR.

In the present case, the City Council in question acknowledges that it began processing on July 1, 2021, and maintained it until December 15, 2022, for the purpose of recording the working hours of the staff at the residence but did not carry out a DPIA, based on the following argument: "it was not possible to carry out an Impact Assessment, as a result of the technical failures caused by the installation of this possible mechanism, and, on the other hand, because it did not intend to replace the clocking in."

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manual records that are in force as of today, and that do not store any type of fingerprint."

As already anticipated, what determines the need to carry out a DPIA (Data Protection Impact Assessment) is not related to the legal effects that the biometric fingerprint system will produce in the control of working hours, so it is irrelevant whether this system was primary or complementary to fulfill this function, or whether it was in a testing phase, which has not been substantiated by the City Council.

It is also irrelevant that the installed system had alleged technical failures and was removed for this reason. Technical failures that are neither detailed nor substantiated by the City Council, which does not provide any certificate or technical report to justify them, nor specifies at what phase of the technical procedure of the system they occurred, nor therefore, to which operations of the processing they were allegedly affecting (fingerprint registration, storage, processing, identity verification, etc.). However, in any case, they are entirely irrelevant because the obligation to prepare a DPIA falls on any responsible party that intends to carry out high-risk processing, prior to doing so, in order to analyze beforehand whether the purpose it intends to achieve with biometric methods is truly necessary, proportional, and appropriate, after analyzing all concurrent risks and whether the same purpose can be achieved using less intrusive methods.

What is truly relevant is that it has been substantiated that the system was installed and functioning (well or poorly) for almost a year and a half, which involved the collection of biometric data, which necessarily had to be stored during that time and used to perform identification at each entry and exit, even if technical defects occurred. Therefore, there was high-risk data processing by the responsible entity, without a prior DPIA being carried out, which was mandatory under Article 35 of the GDPR, thus the City Council incurred in a presumed infringement of the aforementioned provision.

IV

Occurrence of an exception under Article 9 of the GDPR, and legitimizing basis under Article 6 of the GDPR.

Another of the additional requirements for this type of processing will therefore be that prior to initiating the processing, the responsible party must also verify and substantiate that one of the exceptions provided for in Article 9.2 of the GDPR or other specific legislation applies.

It should be noted that, while the processing is generally prohibited, any exception to this prohibition must be subject to restrictive interpretation. As deduced from recitals 51 and 52 of the GDPR.

In this context, the exceptions that could possibly allow for the lifting of the general prohibition on processing biometric data aimed at identifying-verifying the identity of natural persons are those provided for in Article 9.2 of the GDPR, with the following literal wording, which must be interpreted restrictively, always in favor of protecting the rights and freedoms of citizens in case of doubt:

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“2. Paragraph 1 shall not apply when one of the following circumstances occurs:

- a) the data subject has given explicit consent to the processing of such personal data for one or more of the specified purposes, except where Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject;
- b) the processing is necessary for compliance with legal obligations and the exercise of specific rights of the data controller or the data subject in the field of employment law and social security and protection, to the extent that it is authorized by Union or Member State law.
- c) the processing is necessary to protect the vital interests of the data subject or another natural person, in the event that the data subject is not physically or legally capable of giving consent;
- d) the processing is carried out, in the context of its legitimate activities and with appropriate safeguards, by a foundation, an association, or any other non-profit body whose purpose is political, philosophical, religious, or trade union in nature, provided that the processing relates exclusively to current or former members of such bodies or to persons who have regular contact with them in relation to their purposes and provided that the personal data are not disclosed outside of them without the consent of the data subjects;
- e) the processing concerns personal data which the data subject has made manifestly public;
- f) the processing is necessary for the establishment, exercise, or defense of legal claims or when courts are acting in their judicial capacity;
- g) the processing is necessary for reasons of substantial public interest, based on Union or Member State law, which must be proportionate to the aim pursued, respect the essence of the right to data protection, and provide for appropriate and specific measures to safeguard the interests and fundamental rights of the data subject;
- h) the processing is necessary for purposes of preventive or occupational medicine, for the assessment of the working capacity of the employee, for medical diagnosis, for the provision of health or social care or treatment, or for the management of health or social care systems and services, based on Union or Member State law or pursuant to a contract with a health professional and without prejudice to the conditions and safeguards referred to in paragraph 3;
- i) the processing is necessary for reasons of public interest in the area of public health, such as protecting against serious cross-border threats to health, or ensuring high standards of quality and safety of health care and of medicinal products or medical devices, based on Union or Member State law that provides for appropriate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy.
- j) the processing is necessary for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, based on Union or Member State law, which must be proportionate to the aim pursued, respect the essence of the right to data protection, and provide for appropriate and specific measures to safeguard the interests and fundamental rights of the data subject.”

Therefore, in addition to not having conducted a valid DPIA, if the controller does not demonstrate that its processing falls within one of these exceptions, it will be in violation of Article 9 of the GDPR for initiating prohibited processing.

Asked about the circumstance of Article 9.2 of the GDPR that would allow the City Council to process these data, it states that it relies on paragraph b), which refers to the processing being necessary for compliance with a legal obligation. Although this is not specified, it can be understood to refer to the obligation to monitor compliance with working hours by public employees and the corresponding

obligation of the staff to submit to such control established by the administration. Specifically, it pertains to the obligation to monitor the working hours of the labor personnel of the municipal-owned residence.

Therefore, since the exception for the processing of biometric data for compliance with a legal obligation provided for in Spanish law does not apply, and no other exception provided for in Article 9.2 of the GDPR has been demonstrated, it is considered that the biometric processing carried out by the City Council has also incurred an administrative infringement of Article 9 of the GDPR.

Furthermore, it should be clarified that it is not questioned that the City Council acts with a lawful basis provided for in Article 6.1.b), since it concerns labor employees with whom there must be a contractual relationship, so it can initially be considered that the processing of their personal data "is necessary for the execution of a contract in which the data subject is a party or for the application at the request of the data subject of pre-contractual measures." Therefore, an infringement of Article 6 of the GDPR cannot initially be attributed.

However, the lawful basis of Article 6 of the GDPR may legitimize the City Council to process non-biometric personal data, which allows for the recording and control of attendance through other traditional methods (signed sheets, cards, etc.), but in no case does it legitimize the initiation of biometric processing unless one of the exceptions of Article 9.2 of the GDPR applies.

In the present case, it should be clarified that the exception of Article 9.2.b) of the GDPR cannot be accepted, which refers to: "when the processing is necessary for compliance with obligations and the exercise of specific rights of the data controller or the data subject in the field of labor law and social security and protection, to the extent authorized by the law of the Union of the Member States."

As this Agency has already stated in the Guide on attendance control treatments using biometric systems, in the case of the Spanish state, this reference must be understood as requiring a legal reserve, for the purposes provided for in Article 53 of the Constitution. According to the doctrine of the Constitutional Court, in rulings such as STC 76/2019, of May 22, or STC 292/2000, of November 30, the legal reserve implies that there must be a norm with the rank of law that expressly enables the limitation of the fundamental right in question.

Applying this doctrine to cases of limitation of the fundamental right to the protection of personal data, and to the present case, the application of the exception of Article 9.2.b) of the GDPR to process biometric data of employees to identify-authenticate the identity of a person for the purpose of monitoring compliance with their working hours would require that there be a norm with the rank of law that expressly enables such control to be carried out through methods that involve the processing of biometric data.

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In this regard, the cited Guide concludes that: "the current Spanish legal regulations do not contain any sufficiently specific authorization to consider the processing of biometric data for the purpose of time control of the workday to be enabled, neither for labor personnel, since Articles 20.3 and 34.9 of the Consolidated Text of the Workers' Statute (ET) do not contain such authorization, nor for personnel subject to an administrative legal relationship, as the provision related to compliance with working hours and schedules referred to in Article 54.2 of the Consolidated Text approving the Basic Statute of Public Employees (TREBEP) does not constitute a necessary enabling provision."

In this case, regarding municipal employees, it should be noted that the provision of Article 21.1.h) of the Local Regime Bases Law 7/85, of April 2, to which the Protocol of the data processor refers, does not even expressly foresee the obligation to control working hours and schedules, as it merely attributes the superior management of municipal personnel to the Mayor.

Since none of the exceptions provided for in Article 9.2 of the GDPR that would allow lifting the general prohibition on the processing of biometric data have been demonstrated, it is considered that by implementing the biometric timekeeping system, the City Council has also incurred an administrative infringement of Article 9 of the GDPR.

V

On the information duties of Article 13 of the GDPR

Finally, it should be noted that one of the obligations of the data controller for any processing of personal data is to comply with the information duties to the data subjects as provided in Articles 12 to 14 of the GDPR.

According to the provisions of Article 12.1 of the GDPR, it is based on a Principle of “Transparency of information, communication, and modalities for exercising the rights of the data subject”:

“1. The data controller shall take appropriate measures to provide the data subject with all information indicated in Articles 13 and 14, as well as any communication in accordance with Articles 15 to 22 and 34 related to the processing, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, in particular any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When requested by the data subject, the information may be provided verbally, provided that the identity of the data subject is demonstrated by other means.”

These information duties are specified in Articles 13 and 14, with those provided in Article 13 of the GDPR on “Information to be provided when personal data are obtained from the data subject” being applicable to the present case:

1. When personal data relating to a data subject are obtained from that data subject, the data controller shall provide all the information indicated below at the time the data are obtained:

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- a) the identity and contact details of the data controller and, where applicable, of their representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests of the data controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the data controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, a reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time when personal data are obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4),

and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which they were collected, they shall provide the data subject, prior to that further processing, with information on that other purpose and any other relevant information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

In this case, regarding the prior information to be provided to workers about the processing of their biometric data, the City Council states that “The recipients of the system were the staff of the Residence at C/ Jorge Juan, 6.”

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Elderly. The system in testing was implemented in the premises through announcements and informational signage, with the Director of the Residence being responsible for individually informing the workers about the processing of the data that could be obtained.

No evidence has been provided regarding the individual information given to the workers by the Director; the only proof submitted in this regard consists of photographs of the 3 informational posters provided by the claimant, which are dated May 25 and June 31, 2021, that is, a few days before the installation of the biometric control system, with the following content:

(i)

Poster dated 28/05/2021, indicating “Time clock: prohibited to unplug under any circumstances.”

(ii)

Poster dated 28/05/2021 with the “Rules for clocking in” by fingerprint, which clearly states: “Upon entering work: all workers will clock in while in uniform. Upon leaving: all workers will clock out while in uniform (...).”

(iii)

The most relevant, dated 30/06/2021, which literally stated: “Starting in July, clocking in will have to be done via fingerprint, and signature sheets will continue to be used. These sheets will serve each worker to justify and verify the hours worked monthly when the data is communicated to the City Council (night shifts, holidays, Saturdays, and Sundays). In case of conflict, the information contained in the clocking will prevail over that noted on the signature sheet.”

From the informational posters placed, the following can be deduced:

- That starting from 1-7-21, biometric clocking was mandatory and primary, clearly indicating that it would prevail over any possible contradictions with the signature sheet. Therefore, the system was not complementary to the sheets, as stated by the City Council. Or, at least, that was what was formally communicated to the employees.

- There is no reference in the posters indicating that the system was in testing, as stated by the City Council; therefore, if it were in this phase, it was not communicated to the workers. However, as we have already indicated, this is irrelevant for the purposes of obligations regarding data protection, which would equally apply to the testing phase as to the final one.

- None of the posters contain the information required by Article 13 of the GDPR: details of the data controller, the data protection officer, where to obtain additional information and how, data retention period, where to exercise the rights of Articles 15 to 22 of the GDPR, etc. No document has been provided that certifies that this information was delivered individually to each employee before recording their fingerprint.

In summary, from the documents in the file, there is sufficient evidence that the management of the residence was collecting the fingerprints of its employees and used them for these employees to register their entry and exit during almost a year and a half without having informed them prior to or subsequently to the collection of the fingerprints of all the aspects required for data protection,

confirming that the City Council also committed a violation of Article 13 of the GDPR.

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VI

Classification of infractions and qualification for the purposes of prescription.

As has been stated in the Legal Grounds III to VI of this resolution, it is considered that the City Council of Fuentepelayo has committed the following infractions of the current regulations on data protection:

6. 1. Infraction of Article 35 of the GDPR

As stated in Legal Ground III, in accordance with the proven facts in this procedure, it is considered that the facts presented violate the provisions established in Article 35 of the GDPR, which constitutes the commission of an administrative infraction classified in Article 83.4.a) of the GDPR, which indicates that:

“Infractions of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43.”

For the purposes of prescription, the LOPDGDD establishes in its Article 73.t) that: “Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following infractions are considered serious and shall prescribe after two years: infractions that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

t) The processing of personal data without having carried out the impact assessment of the processing operations on the protection of personal data in cases where it is required.”

6. 2. Infraction of Article 9 of the GDPR.

As stated in Legal Ground IV, in accordance with the proven facts in this procedure, it is considered that the facts presented violate the provisions established in Article 9 of the GDPR, which constitutes the commission of an administrative infraction classified in Article 83.5 of the GDPR, which provides as follows:

“Infractions of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9.”

For the purposes of prescription, the LOPDGDD establishes in its Article 72.e):

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and shall prescribe after three years: infractions that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

e) The processing of personal data of the categories referred to in Article 9 of Regulation (EU) 2016/679, without any of the circumstances provided for in that provision and in Article 9 of this organic law.”

6. 3. Infraction of Article 13 of the GDPR.

As stated in Legal Ground V, in accordance with the proven facts in this procedure, it is considered that the facts presented violate the provisions established in Article 13 of the GDPR, which constitutes the commission of an administrative infraction classified in Article 83.5 of the GDPR, which provides as follows:

“Infractions of the following provisions shall be sanctioned, in accordance with paragraph 2, with

administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9.”

For the purposes of prescription, the LOPDGDD establishes in its Article 72.h), that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and shall prescribe after three years: infractions that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law.”

VII

Proposal for sanction

Article 83 “General conditions for the imposition of administrative fines” of the GDPR in its paragraph 7 establishes:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 “Regime applicable to certain categories of controllers or processors” of the LOPDGDD provides that:

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“1. The regime established in this article shall apply to the treatments for which the following are responsible or in charge:

a) The constitutional bodies or those with constitutional relevance and the institutions of the autonomous communities analogous to them.

b) The judicial bodies.

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

d) The public bodies and entities of public law linked to or dependent on the Public Administrations.

e) The independent administrative authorities.

f) The Bank of Spain.

g) The public law corporations when the purposes of the treatment relate to the exercise of public law powers.

h) The public sector foundations.

i) The Public Universities.

j) The consortiums.

k) The parliamentary groups of the General Courts and the autonomous Legislative Assemblies, as well as the political groups of the Local Corporations.

2. When the responsible parties or those in charge listed in paragraph 1 commit any of the infringements referred to in articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed, with the exception of that provided for in article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.”

The resolution shall be notified to the responsible party or the person in charge of the treatment, to the body to which they hierarchically depend, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to the provisions of the previous paragraph, the data protection authority shall also propose the initiation of disciplinary actions when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regime that is applicable.

Likewise, when the infringements are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for the treatment that have not been duly addressed, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order the publication in the corresponding Official State or autonomous Bulletin.

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4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.”
Since the responsible party for the treatment belongs to the local administration, and the commission of the aforementioned infringements has been confirmed, it is appropriate to issue a resolution declaring the commission by the City Council of Fuentepelayo of 3 administrative infringements for the violation of Article 9 of the GDPR, Article 35 of the GDPR, and Article 13 of the GDPR, classified in Article 83.4.a) of the GDPR, Article 83.5.a) of the GDPR, and Article 83.5.b) of the GDPR. The sanction that corresponds to be imposed is the declaration of infringement.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been proven, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the CITY COUNCIL OF FUENTEPELAYO, with NIF P4010000J, has infringed the provisions of Article 9 of the GDPR, Article 35 of the GDPR, and Article 13 of the GDPR, which constitutes the commission of 3 administrative infringements classified in Article 83.4.a) of the GDPR, Article 83.5.a) of the GDPR, and Article 83.5.b) of the GDPR.

SECOND: TO NOTIFY this resolution to the CITY COUNCIL OF FUENTEPELAYO.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of article 77.5 of the LOPDGDD.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution shall be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

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If this is the case, the interested party must formally communicate this fact by means of a written

document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. The interested party must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the precautionary suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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